

25STCV06110 25STCV06110

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-07

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Case Number: 25STCV06110 Hearing Date: August 7, 2026 Dept: 413

TENTATIVE RULING

Hearing

Date: August 7, 2026

Melissa Ragan v. General Motors, LLC, Case No. 25STCV06110

Defendant's Motion to Transfer

Venue

Ruling: Defendant's Motion to Transfer Venue to the County of El Dorado is granted. The Court orders venue to be transferred upon payment by Defendant of all required transfer fees. The Court sets an Order to Show Cause re Venue Transfer and Payment of Transfer Fees for _____, 2026. All future hearing dates except for the October 19, 2026, hearing on Plaintiff's counsel's motion to be relieved as counsel are vacated. If the transfer occurs before October 19, 2026, that hearing date will be deemed vacated as well.

Defendant

filed Motion to Transfer Venue of this Song-Beverly Act (lemon law) case on April 23, 2026, seeking an order to transfer venue of this case to the Superior Court of California, County of El Dorado. Plaintiff filed no opposition to the motion, and, according to Defendant's counsel, Plaintiff's counsel informed him during a meet and confer regarding the motion that he would not oppose the motion.

The motion

is brought under sections 396b and 397(c) of the Code of Civil Procedure on the grounds that Plaintiff lives in Oregon, and, as alleged by Plaintiff, the warranty repairs were performed in El Dorado County. Plaintiff has presented no evidence since the case was filed on March 5, 2025, that any party or material witness is located in Los Angeles County, and, since all repairs were performed in El Dorado County, the material witnesses reside there.

Considering

the evidence presented with the motion, the Court determines that the interests of justice and convenience of the witnesses and parties support transfer of the venue of this case to El Dorado County.